

2:00 PM

LINE 12

26-CIV-01102

CARRIE YAN VS. COUNTY OF SAN MATEO

CARRIE YAN
COUNTY OF SAN MATEO

BART A. SEEMEN
SAN MATEO COUNTY ATTORNEY'S
OFFICE

DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

Defendant San Mateo County's demurrer to all causes of action in the complaint filed by Plaintiff Carrie Yan on February 13, 2026 is **OVERRULED IN PART** and **SUSTAINED IN PART**. Leave to amend the sixth cause of action is **GRANTED**.

A. Background

This is an employment action arising out from Plaintiff Carrie Yan's May to December 2025 employment with San Mateo County as an Extra Help Benefits Analyst I.

From May 2025 through approximately September 2025, Yan engaged in her training period with the County and received a review rating of "competent" at her training graduation. (Compl. ¶¶ 20 & 21.) Plaintiff was then placed at a call center and she began to see a therapist because of worsening mental health symptoms related to the "stress, anxiety, fatigue, and burnout" from working at the call center in September and October. (Compl. ¶¶ 24 & 25.)

By October 2025, Yan spoke with her supervisor, Griselda Ruiz, and requested a transfer to a non-call center position and was told that transfers were not permitted until an employee had completed six months of employment with the County, and that transfers were based on seniority. (Compl. ¶ 26.)

In mid-November 2025, Yan submitted an accommodation request to the County's Human Resources Department. Yan alleges that the County failed to engage in the interactive process regarding her need for accommodation. (Compl. ¶¶ 30 & 31.)

In December 2025, plaintiff began seeing a new therapist and voluntarily elected to resign from her position on December 19, 2025. This was less than seven months after starting employment and three months after beginning her role at the call center. (Compl. ¶¶ 34 & 38.)

On February 13, 2026, plaintiff filed the underlying complaint which raises six causes of action under the California Fair Employment and Housing Act (Gov. Code, § 12900 et seq.) ("FEHA") and Labor Code section 1102.5. The causes are:

1. Disability Discrimination – FEHA
2. Failure to Provide Reasonable Accommodation – FEHA
3. Failure to Engage in the Interactive Process – FEHA
4. Retaliation – FEHA
5. Failure to Prevent Discrimination and Retaliation – FEHA
6. Violation of California Labor Code section 1102.5

On March 16, 2026, the parties met and conferred pursuant to Code of Civil Procedure, section 430.41, but were unable to reach a resolution. (Declaration of Candice Saadian Costa, filed March 23, 2026 iso Demurrer, ¶ 4.)

On March 23, 2026, Defendant filed the instant demurrer. Defendant demurs to the complaint in entirety for failure to state sufficient facts; the first five causes of action fail to allege a disability under FEHA and the sixth cause of action for failing to allege that plaintiff engaged in any protected whistleblowing activities. Alternatively, even if a disability were alleged, defendant contends the first cause of action for discrimination fails to allege an adverse employment action since plaintiff voluntarily resigned. Plaintiff opposes, contending the demurrer misapprehends both the governing pleading standard and the substantive law.

B. Legal Standard

The rules for a demurrer are well known: In reviewing the demurrer, the Court construes the allegations liberally, reading the complaint as a whole, with a view to substantial justice between the parties. (Code of Civ. Proc., § 452; *Saxer v. Philip Morris Inc.* (1975) 54 Cal.App.3d 7, 18.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30, 430.70.) “[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation].” (*John’s Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John’s Grill*), quoting *Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496.)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John’s Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not “assume the truth of contentions, deductions or conclusions of law.” (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Rather, the “demurrer tests the sufficiency of the plaintiff’s complaint, i.e., whether it states facts sufficient to constitute a cause of action upon which relief may be based.” (*Villarroel v. Recology, Inc.* (2023) 97 Cal.App.5th 762, 772, quoting *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469.)

C. Discussion

The FEHA Causes of Action

Defendant contends that the first five causes of action in the complaint, all of which allege different FEHA violations (Disability Discrimination, Failure to Provide Reasonable Accommodation, Failure to Engage in the Interactive Process, Retaliation and Failure to Prevent Discrimination and Retaliation), fail in unison because Plaintiff's sole claimed disability—work related stress and anxiety—is not a qualifying disability under FEHA. The issue in this demurrer is whether the following allegations are sufficient to allege a mental disability under FEHA:

24. The demanding nature of the call center work environment caused Ms. Yan to experience significant and worsening stress, anxiety, fatigue, and burnout from September through October 2025.

25. As a result of her worsening mental health symptoms caused by the call center work environment, Ms. Yan began seeing a therapist in September 2025. Ms. Yan's therapist documented that she was experiencing significant work-related stress, anxiety, fatigue, and burnout directly attributable to her work conditions.

(Compl., ¶¶ 24, 25; see also *id.*, ¶ 5 [listing “work related stress, anxiety, fatigue and burnout as documented by her treating therapist, which substantially limited one or more major life activities”]; ¶ 34 [referencing another therapist but not alleging any diagnosis from provided].)

“California's Fair Employment and Housing Act (Gov. Code, § 12900 et seq.) (FEHA) defines and prohibits several unlawful employment practices, including (1) “discriminat[ing] against a person” because of a “physical” or “mental disability,” (2) “fail[ing] to make reasonable accommodation” for a “known physical or mental disability,” and (3) “fail[ing] to engage in a timely, good faith, interactive process ... to determine effective reasonable accommodations.” (§ 12940, subds. (a), (m)(1) & (n).) (*Husband v. Target Corporation* (2026) 120 Cal.App.5th 762 [344 Cal.Rptr.3d 622, 625].) Courts construe FEHA broadly rather than restrictively. (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 123; Gov. Code, § 12993, subd. (a).)

“‘Mental disability’ for purposes of FEHA includes ‘any mental or psychological disorder or condition,’ which in turn includes ‘mental illness’ (Gov. Code, § 12926, subd. (j)(1))” (*Husband v. Target Corporation*, *supra*, 120 Cal.App.5th 762 [344 Cal.Rptr.3d 622, 629] that limits a major life activity. (Gov. Code, § 12926, subd. (j)(1).)

Defendant focuses on the lack of a specific diagnosis of a mental condition being alleged and emphasizes that “FEHA prohibits discrimination based on an employee’s disability or perceived disability, but it “does ‘not guarantee employees “a stress-free working environment.”” (*Arteaga v. Brink's, Inc.* (2008) 163 Cal.App.4th 327, 344) and “Work places are rarely idyllic retreats” (*Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 735.) Defendant relies on *Higgins-Williams v. Sutter Medical Foundation* (2015) 237 Cal.App.4th 78, a summary judgment case where the trial court of Court of Appeal held that the plaintiff did not have a

FEHA recognized mental disability even though she was diagnosed with an adjustment disorder with anxiety because “[a]n employee's inability to work under a particular supervisor because of anxiety and stress related to the supervisor's standard oversight of the employee's job performance does not constitute a disability under FEHA.” (*Id.* at p. 84.) Defendant seeks to read *Higgins* broadly to say that its holding applies to all anxiety and stress cases in the workplace and not just anxiety and stress caused by the work place.

Defendant states in its reply brief: “The holding of *Higgins-Williams* is not limited to supervisor-generated stress. The court held broadly that an employee's ‘inability to work in her employment situation’ due to stress and anxiety did not constitute a FEHA disability because the plaintiff failed to demonstrate a disorder that limited any major life activity beyond her particular job situation. (*Id.* at pp. 84-85.)” (Reply at p. 3.) The court read the pin cite and has conducted a word search and does not find the phrase “inability to work in her employment situation” in the *Higgins* decision. By 11:00 on June 30, 2026, defense counsel Candice Saadian, the attorney who signed the brief, is to file, serve and email to Department 4 a declaration where she attaches the *Higgins* case with the phrase “inability to work in her employment situation” highlighted. Plaintiff claims that the case is limited to its facts, i.e., that there is no FEHA violation when stress is caused by a supervisor. Plaintiff states “Whether a plaintiff is in fact disabled is a question of fact that cannot be resolved on demurrer. *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570.” (Opp. at p. 2.) Plaintiff does not provide a pin cite and the court has done word searches and sees no language that supports plaintiff's statement. By 11:00 on June 30, 2026, plaintiff's counsel Bart Seemen, the attorney who signed the brief, is to file, serve and email to Department 4 a declaration where he attaches the *Soria* case and highlights where is the case the court made the proffered statement. *Soria* is factually distinct because in that case the plaintiff had cancer and the issue dealt with whether her stomach tumor limited her working and does not discuss how to define mental disability under FEHA.

Higgins provides guidance regarding how to analyze a mental disability, but it does not stand for the broad proposition that there can never be a mental disability based upon stress and anxiety in the work place. There is case authority, which the court found, to support plaintiff's position. In *Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245 (*Jensen*), the Court of Appeal stated that “we cannot say that the [plaintiff's] stress disorder does not meet the definition of disability even were we to apply the stricter ADA test.” and reversed the trial court's granting of summary judgment (*Id.* at pp. 248-249, 259.) Plaintiff in *Jensen*, when she arrived at the defendant bank to work as a bank manager, was approached by two robbers who put a gun to her head and attempted to rob the bank. Even after the two robbers were convicted, she tried to return to her position but it was too stressful. (*Id.* at p. 249.) A federal district court, which is persuasive authority, relied on *Jensen* to hold that anxiety or stress may be considered a disability under FEHA. (*Kailikole v. Palomar Community College District* (S.D. Cal. 2019) 384 F.Supp.3d 1185, 1192–1193.)

In reading the allegations of the complaint liberally and accepting them as true, as the court must do on demurrer, the Complaint alleges facts sufficient to state a cause of action for the first, second, third, fourth and fifth causes of action.

In the alternative, defendant contends that even if the complaint adequately alleges a mental health disability, the first cause of action for discrimination in violation of FEHA fails to state a sufficient cause of action for lack of an adverse employment action due to her disability because plaintiff voluntarily resigned.

A prima facie case of disability discrimination under FEHA requires the employee to show he or she (1) suffered from a disability, (2) was otherwise qualified to do his or her job, and (3) was subjected to adverse employment action because of the disability. (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886, 58 Cal.Rptr.3d 729.)” (*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 458.)

Here, plaintiff asserts the adverse employment action she experienced was, in essence, “the silent treatment” resulting from “[t]he COUNTY’s complete failure to respond to PLAINTIFF’s accommodation request, its refusal to engage in the interactive process despite confirmed receipt of her request and medical documentation, and its denial of transfer to available vacant positions may constitute discrimination based on disability. (Compl. ¶ 43.) Said refusal to remedy such conduct “subjected PLAINTIFF to the constructive termination of her employment.” (Compl. ¶¶ 45 & 46.)

Constructive discharge, like actual discharge, has been regarded as a materially adverse employment action. (*Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.) “ ‘Constructive discharge occurs when the employer’s conduct effectively forces an employee to resign.’ ” (*Atalla v. Rite Aid Corp.* (2023) 89 Cal. App. 5th 294, 319.) “The essence of the test is whether, under all the circumstances, the working conditions are so unusually adverse that a reasonable employee in plaintiff’s position would have felt compelled to resign.” (*Id.* at p. 320, internal quotation marks and citations omitted.) In other words, determining whether or not the constructive discharge alleged was in fact an adverse employment action is a question of fact to be resolved by testing the factual circumstances to determine whether the working conditions were so intolerable that any reasonable employee would quit. (See *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.)

The complaint alleges sufficient facts, which read liberally, to show that the situation at plaintiff’s work became so intolerable due to, inter alia, their failure to engage in the interactive process, she was forced to quit, an adverse employment action. Thus this alternative argument fails.

Sixth Cause of Action- Violation of California Labor Code Section 1102.5

Plaintiff’s sixth cause of action is brought under Labor Code section 1102.5, which protects whistleblowers from retaliation. As former Justice Ming Chin of the California Supreme Court explains: “California law also bars employer retaliation against employees for whistleblowing (i.e., reporting violations of federal, state or local laws, rules or regulations to governmental agencies or to certain persons within the company) or for *refusing to violate* federal, state or local laws, rules or regulations, either on the present job or in any former employment. [See Lab.C. § 1102.5]” *Cal. Prac. Guide Employment* §

5:1538 (TRG Mar. 2026 update).) “The employee must show, as part of his or her prima facie case, that he or she suffered some adverse action by the employer occurring subsequent to or contemporaneously with the employee's exercise of protected rights.” (*Id.*, § 5:1543.)

Section 1102.5 provides whistleblower protections to employees who disclose wrongdoing to authorities. As relevant here, section 1102.5 prohibits an employer from retaliating against an employee for sharing information the employee “has reasonable cause to believe ... discloses a violation of state or federal statute” or of “a local, state, or federal rule or regulation” with a government agency, with a person with authority over the employee, or with another employee who has authority to investigate or correct the violation. (§ 1102.5, subd. (b).) “This provision,” we have explained, “reflects the broad public policy interest in encouraging workplace whistle-blowers to report unlawful acts without fearing retaliation.” (*Green v. Ralee Engineering Co.* (1998) 19 Cal.4th 66, 77, 78 Cal.Rptr.2d 16, 960 P.2d 1046.)

(*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 709.)

Paragraph 88 of the Complaint lists the following as protected whistleblowing activities:

- reporting the COUNTY's failure to provide reasonable accommodations and engage in the interactive process as required by FEHA and the ADA;
- filing a workers' compensation claim; and
- reporting working conditions that required uncompensated work before the start of her paid shift and after the end of her scheduled shift in potential violation of California labor laws.

Paragraph 89 states in retaliation of the protected activities enumerated in paragraph 88 “DEFENDANTS subjected PLAINTIFF to adverse employment actions, including but not limited to ignoring her accommodation request, refusing to engage in the interactive process, denying her transfer to available vacant positions, and creating intolerable working conditions that resulted in her constructive termination.”

While defendant points to these activities (Opening Br. at p. 9), plaintiff limits the whistleblower complaint to reporting wage and hour violations. (Opp. at p. 9 [citing Compl. ¶¶23, 88.]

Here, even read liberally, the sixth cause of action fails to state a sufficient basis for a section 1102.5 claim because while she identifies wrongful acts, she only conclusory contends that she reported them and that conclusion without facts is not sufficient to state a cause of action. “[P]arrotting the legal elements of the cause of action, are not sufficient to state a claim.” (*Rincon Band of Luiseno Mission Indians etc. v. Flynt* (2021) 70 Cal.App.5th 1059, 1112.) Accordingly, the court SUSTAINS with leave the demurrer to the sixth cause of action.

Plaintiff has ten (10) days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order repeating verbatim the tentative ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law.

2:00 PM

LINE 13

26-CIV-01651

MOHAMMED YASIN VS. SUKHDEV SINGH DHILLON, ET AL.

MOHAMMED YASIN
SUKHDEV SINGH DHILLON

ERIC S RITIGSTEIN

MOTION FOR LEAVE TO FILE COMPLAINT-IN-INTERVENTION

TENTATIVE RULING:

Subject to any opposition credited by the court, the court will grant petitioner/proposed plaintiff-in-intervention Sentry Casualty Company's (Sentry) unopposed motion for leave to file a complaint-in-intervention once proper service on all parties is demonstrated or the other parties indicate that they do not oppose the motion.

The motion suffers from fatal procedural defects.

First, while there is a proof of service for the proposed order, there is no proof of service for the notice of motion, memorandum of points and authorities, and the declaration. Proofs of service must be filed five court days before the hearing. Second, in the notice of motion, Sentry did not put a hearing date for the motion and the clerk added the date of June 30, 2026 for the hearing. The court file shows a proof of service filed March 2, 2026 of the motion showing service of the motion on defendant on February 26, 2026. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, the other parties did not receive proper notice of the hearing date including notice showing the other parties being served with all documents (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) Further: “[P]roof of service fulfills the function of establishing that ‘procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.’” (*West v. West* (1979) 92 Cal.App.3d 120, 124, 154 Cal.Rptr. 667.) Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. (*Ibid.*) That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act. (*Ibid.*)” (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.)

However, the right of Sentry to intervene is mandatory. Pursuant to Labor Code sections 3852 and 3853, Sentry, as the worker's compensation, has the statutory right to intervene in this action. Sentry has provided a proposed complaint in intervention.
